

Court No. - 21

Case :- WRIT - C No. - 6280 of 2023

Petitioner :- Mukundi Lal

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Suresh Chandra Dwivedi

Counsel for Respondent :- C.S.C.,Gaurav Singh

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

Adjourned on account of personal difficulty of counsel for the petitioner.

List as fresh on 14.03.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.2.2023

SL

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The instant petition has been filed challenging the demand notice dated 30.12.2022 issued by Executive Engineer, Electricity Distribution, Khand Chitrakoot demanding a sum of Rs.82,893/- from the petitioner towards electricity dues and compounding fee in a case of theft of electricity.

Sri Gaurav Singh, learned counsel for the respondent Electricity Department states that the demand notice has been issued as the petitioner was found extracting electrical energy illegally. He states that the provisional assessment notice has been issued to the petitioner on 10.11.2022. However, final assessment order is yet to be passed.

Since final assessment order is yet to be passed, as is the stand taken by learned counsel for the respondent-Electricity Department, therefore, the demand notice issued by the respondent-Electricity Department is rendered illegal and it is accordingly quashed.

The petitioner is granted liberty to file objection against the provisional assessment notice within two weeks from today and the respondent Authority will proceed to make final assessment strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

The petition stands disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 14.3.2023

SL